

		Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendants to give notice.
4	Garcia De Jaimes vs. ST. John Knits, Inc.	TENTATIVE RULING: <u>Motion to Compel Arbitration</u> Defendant St. John Knits, Inc. moves to compel arbitration of the claims asserted by Plaintiff Elizabeth Garcia De Jaimes. For the following reasons, the unopposed motion to compel arbitration is GRANTED. Both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. § 2 and Code Civ. Proc., § 1281.2.) Under either authority, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (See <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [“The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense”]; See also <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 [“The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense....”].) Defendant has provided evidence of an Arbitration Provision in the Motor Vehicle Order Agreement and Retail Installment Sale Contract that is undisputed by Plaintiff. (Kim Dec., ¶¶ 3-11 and Exs. 1 and 2.) In determining whether a contractual arbitration clause covers a particular dispute, the primary focus is on whether the clause at issue is “broad” or “narrow.” (<i>Bono v. David</i> (2007) 147 Cal. App. 4th 1055, 1067.) In determining the scope of an arbitration clause, trial courts attempt to give effect to the parties’ expressed intentions. (<i>Victoria v. Superior Court</i> (1985) 40 Cal. 3d 734, 744.)

		Here, the scope of the Arbitration Agreement is very broad and encompasses the claims asserted by Plaintiff against Defendant. In covering “all disputes, claims or disagreements arising from or relating to this Agreement, the employment relationship between the parties or the establishment or termination of the employment relationship that are not resolved via mutual agreement,” the Agreement covers Plaintiff’s claims against Defendant. (Fajardo Dec., ¶¶ 6-7 and Ex. E; Treasure Dec., at ¶ 4 and Ex. C.) Plaintiff did not oppose the motion and thus provides no basis to deny the motion to compel arbitration. Accordingly, the Motion to Compel Arbitration is granted, and the action stayed, pending the completion of arbitration. (Code Civ. Proc. § 1281.4.) An ADR Review Hearing is set for 9:00 a.m. on September 22, 2026, in Department N16. Defendant shall give notice of this ruling.
5	Activate Clean Energy, LLC vs. DMX Engineering, LLC	TENTATIVE RULING: <u>Motion to Modify Order</u> Plaintiffs/Cross-Defendants Activate Clean Energy, LLC, and Rasa Energy, Inc.; and Cross-Defendants David Martin, William Wismann, Robert Kendall, Anthony Buda, and Ernest Lee move to modify this court’s 07/02/2025 order granting foreign attorney Maggi L. Evert’s motion to appear pro hac vice, to reflect Attorney Saundra K. Wootton will be associated counsel of record. For the following reasons, the motion is CONTINUED to July 1, 2026, at 9:00 a.m. in this Department. No later than nine (9) court days before the continued hearing, Moving Parties shall file a supplemental brief addressing to what extent notice must be provided on the California State Bar prior to any modification of the order granting Attorney Ebert’s pro hac admission and/or whether the California State Bar requires a separate or renewed application for pro hac vice admission. (See Cal. Rules of Ct., Rule 9.40.) No later than five (5) court days before the continued hearing, Defendants may file any opposition or response. Moving party to give notice.